

Amendment No. 1 to HJR0028

Terry
Signature of Sponsor

AMEND

House Joint Resolution No. 28*

by deleting all language after the caption and substituting:

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that a majority of all the members of each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article I of the Constitution of Tennessee be amended by adding the following language as a new section:

(a) Absent due process of law, the state shall not compel any person to undergo a medical treatment, even in the case of a declared state of emergency. For the purposes of this section, "medical treatment" includes any medical procedure, drug administration, vaccination, or other intervention intended to diagnose, treat, prevent, or mitigate any physical or mental condition.

(b) The General Assembly has the authority to enact legislation necessary to enforce the provisions of this section.

BE IT FURTHER RESOLVED, that the foregoing be referred to the One Hundred Fifteenth General Assembly and that this resolution proposing such amendment be published in accordance with Article XI, Section 3 of the Constitution of Tennessee by posting such amendment on the official website of the Secretary of State and on the official website of the General Assembly.

BE IT FURTHER RESOLVED, that the Clerk of the House of Representatives is directed to deliver copies of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.